

PRIVACY POLICY AND GENERAL CONSENT AGREEMENT
ORGANIZING COMMITTEE OF YOUTH MINING CAMP COMPETITION (YMCC) VII
DEPARTMENT OF MINING ENGINEERING - UNIVERSITAS PEMBANGUNAN NASIONAL
"VETERAN" YOGYAKARTA

PREAMBLE & JURIDICAL BOUNDARIES

This Universal Privacy Policy and General Consent Agreement (hereinafter referred to as the "Agreement") constitutes a legally binding contract between the Organizing Committee of YMCC VII (in collaboration with ARC Studio, hereinafter referred to as the "Organizer") and any individual who accesses, registers, purchases, participates, judges, administrates, supervises, or is otherwise captured visually or digitally within the physical and digital boundaries of YMCC VII (hereinafter referred to as the "User").

By accessing the domain ymccvii.com (including all subdomains and integrated portals), registering as staff, acting as an advisor, or entering any physical venue of YMCC VII, the User explicitly and unconditionally consents to all terms, data processing workflows, intellectual property assignments, and legal waivers contained herein.

SECTION 1: DEFINITIONS & APPLICABILITY OF ROLES

This Agreement applies to all Users, classified into the following specific legal roles. A User may hold multiple roles simultaneously, and all applicable clauses shall apply cumulatively:

1. **Registered Account Holders ("Registered Users"):** Any individual who creates credentials to access closed portals of the website.
2. **Competitors & Applicants ("Participants"):** Any individual or team representative registered to compete in any official sub-event of YMCC VII (including, but not limited to, the Intellectual Challenge).
3. **Models & Talents ("Models"):** Any individual commissioned, hired, or volunteering to act as the primary visual subject for official YMCC VII promotional material, catalogs, or teasers.
4. **E-Commerce Buyers ("Buyers"):** Any individual or entity purchasing official merchandise, jackets, vests, or seminar kits via the integrated Merch Shop.
5. **Judges & Evaluators ("Juries"):** Academic and industry experts appointed to evaluate, grade, and score any competition tier.
6. **Committee Members & Organizers ("Committee/Panitia"):** Any student officer, staff member, manager, head of department, or member of the Board of Directors of YMCC VII who executes operational, technical, or administrative duties.
7. **Academic Advisors, Lecturers, & Faculty ("Advisors/Dosen"):** Members of the academic senate, lecturers, advisors, and faculty representatives of Universitas Pembangunan Nasional "Veteran" Yogyakarta who supervise, audit, or approve the event.
8. **Accidental Public & On-Site Attendees ("Public Subjects"):** Any visitor, observer, supporter, photographer, or passerby present within the physical filming locations, event venues, or campus premises of YMCC VII, whose image or voice may be captured.

SECTION 2: ROLE-SPECIFIC LEGAL CLAUSES & WAIVERS

2.1 FOR REGISTERED USERS: ACCOUNT SECURITY & METADATA LOGS

- **Data Collected:** IP Address, browser User-Agent, cookie identifiers, login timestamps, and account session activities.
- **Consent & Security Protocol:** Registered Users agree that the Organizer reserves the right to monitor account activities to prevent brute-force attacks, multi-device login fraud, and unauthorized system access. Security logs are retained for audit purposes and will not be shared with external parties unless mandated by law.

2.2 FOR PARTICIPANTS: ACADEMIC PROCTORING, REAL-TIME TELEMETRY, & SCORE PUBLICATION

- **Proctoring Consent:** Participants in online examinations explicitly consent to the active deployment of the **Tab Visibility API** and screen-monitoring telemetry. The system will automatically log, timestamp, and report every instance of browser tab-switching or window defocusing to the operator dashboard as potential academic fraud.
- **Proctoring Validation:** Participants acknowledge that while the web platform logs system anomalies, physical proctoring via separate cameras (Zoom/Google Meet) is managed by panitia. The system logs are final and non-negotiable.
- **Real-time Leaderboard & Media Release:** Participants agree that their names, university affiliations, team scores, and ranking telemetry will be stored, processed, and displayed publicly in real-time on live leaderboards, videotron displays, and official print/digital publications.
- **SLA for Technical Disqualification:** Participants agree that any automated or manual disqualification resulting from documented security or proctoring violations is final and does not entitle the Participant to a refund of registration fees.

2.3 FOR MODELS & TALENTS: COMMERCIAL EXPLOITATION & ROYALTY WAIVER

- **Absolute Likeness Release:** Models grant the Organizer an exclusive, perpetual, worldwide, and royalty-free right to publish, distribute, and commercially exploit their physical appearance, voice, and poses captured during official sessions.
- **Waiver of Review & Compensation:** Models waive any right to inspect or approve the final visual outputs (photographs, catalog designs, video teasers) and permanently waive any claim to financial compensation, royalties, or profit-sharing arising from the commercial sale of merchandise featuring their likeness.

2.4 FOR BUYERS: LOGISTICS, BILLING METADATA, & TRANSACTIONAL RETENTION

- **Third-Party API Processing:** Buyers consent to the transmission of necessary transaction metadata (full name, delivery address, phone number, and parcel specifications) to integrated API systems:
 1. **Xendit API:** For PCI-DSS compliant payment processing (VA, QRIS, Credit Card).
 2. **Biteship / RajaOngkir API:** For dynamic shipping calculations and automated waybill generation.
- **Data Retention:** Transactional data is securely archived in the Organizer's database to facilitate order tracking, customer service, and historical financial reporting.
- **Platform Fee Consent:** Buyers agree that all transactional processing fees charged by third-party

APIs are integrated into the "Platform Fee" paid by the Buyer at checkout.

2.5 FOR JURIES & EVALUATORS: INDEPENDENT DECISION & LOGGING VALIDITY

- **Data Logging:** Juries agree that all grading inputs, comments, and scoring metrics submitted via the Web Scoring Center /admin are logged under their authorized accounts.
- **Decision Validity:** Juries and Participants agree that once grading metrics are committed to the database, they are structurally unalterable, except by explicit written authorization of the Head of Competition, to preserve competitive integrity.

2.6 FOR COMMITTEE MEMBERS / ORGANIZERS: NDA & AUTOMATIC IP TRANSFER

- **Absolute Non-Disclosure (Data Confidentiality):** Any Committee member who accesses administrative panels, participant databases, answer sheets, or financial records is strictly bound to confidentiality. Sharing, exporting, or utilizing participant personal data (NIM, emails, phone numbers) outside of official YMCC VII operations is a direct violation of Indonesian Personal Data Protection Law (UU No. 27/2022) and will result in immediate dishonorable discharge and legal prosecution.
- **Automatic Intellectual Property (IP) Transfer (UU No. 28/2014):** Under **Article 36 of the Indonesian Copyright Law (UU Hak Cipta)**, any and all works produced by Committee members during their tenure (including, but not limited to, website source code written by Web System, designs created by BPR/CP, video footage captured by CP, and copywriting text compiled by PC) are considered "Works Made for Hire" (Ciptaan dalam Hubungan Dinas). All copyrights and economic exploitation rights of these works are automatically transferred and owned exclusively by YMCC VII and ARC Studio. Committee members cannot revoke, demand take-down, or claim royalty over these assets during or after their tenure.

2.7 FOR ACADEMIC ADVISORS, LECTURERS, & FACULTY: INSTITUTIONAL SHIELD & NO-LIABILITY

- **Limitation of Personal Liability:** Advisors and Lecturers provide academic counsel, guidance, and institutional oversight only. Under no circumstances shall UPN "Veteran" Yogyakarta faculty, advisors, or lecturers be held personally or financially liable for any operational failure, contractual disputes with third-party vendors, or financial deficits incurred by the student organizers of YMCC VII.
- **Confidential Access and Auditing:** Faculty advisors are granted auditing access to the centralized *Digform* and financial dashboards. This access is governed by academic privilege and cannot be shared with external academic institutions or commercial entities.

2.8 FOR PUBLIC SUBJECTS: ACCIDENTAL CROWD DOCUMENTATION & NEWSLETTER ARTICLES

- **Crowd Release (On-Site Consent):** By entering any physical venue or filming location of YMCC VII (including Studio Alam Gamplong, Pendopo FTME, Kaliurang Villa, and campus competition spaces), Public Subjects acknowledge that they are entering an active media documentation zone.
- **Accidental Publication Waiver:** Public Subjects grant the Organizer the right to utilize, crop, edit, and publish photographs or video recordings containing their background presence (including crowd shots, group photos, and candid documentations) in promotional videos, after-movies, and official

articles or newsletters.

- **No Defamation Claims:** Public Subjects waive the right to assert any claim of invasion of privacy, trespass, or defamation against the Organizer or ARC Studio for the publication of background documentation in any medium.

SECTION 3: INTELLECTUAL PROPERTY & DESIGN GOVERNANCE (ARC STUDIO)

1. All proprietary designs, UI/UX layouts, custom icons, sub-branding systems, website source codes, database structures, and digital assets associated with YMCC VII are the exclusive intellectual property of the Organizer under the design governance of ARC Studio.
2. Any unauthorized replication, reverse engineering, scrap-mining, or modification of the website architecture is strictly prohibited and will be prosecuted under the applicable laws of the Republic of Indonesia.

SECTION 4: INDEMNIFICATION, LIMITATION OF LIABILITY, & WAIVER OF CLASS ACTION

1. The User agrees to defend, indemnify, and hold harmless the Organizer, UPN "Veteran" Yogyakarta, the Department of Mining Engineering, HMTA, and ARC Studio from any claims, damages, liabilities, or legal expenses (including attorney fees) arising from the User's breach of this Agreement.
2. Under no circumstances shall the Organizer be liable for any indirect, incidental, or consequential damages, including server downtime, transaction processing delays, or minor data syncing latencies between the database and the Google Sheets fallback system.

SECTION 5: WAIVER OF ARTICLE 1266 OF THE INDONESIAN CIVIL CODE

Both the Organizer and the User explicitly and intentionally waive the application of **Article 1266 of the Indonesian Civil Code (Kitab Undang-Undang Hukum Perdata / KUHPerdata)**. Consequently, any termination or revocation of consent under this Agreement shall not require a judicial decree or court intervention to be considered valid and effective. This Agreement remains binding from the moment of digital execution/access.

SECTION 6: SEVERABILITY CLAUSE

If any provision, clause, or paragraph of this Agreement is found to be invalid, illegal, or unenforceable by a court of competent jurisdiction, such invalidity or unenforceability shall not affect the validity, legality, and enforceability of the remaining provisions of this Agreement, which shall remain in full force and effect.

SECTION 7: GOVERNING LAW AND JURISDICTION

This Agreement is governed by and construed in accordance with the laws of the Republic of Indonesia. Any disputes arising from or in connection with this Agreement that cannot be resolved through amicable mediation within 14 (fourteen) calendar days shall be submitted to the exclusive jurisdiction of the **Sleman District Court (Pengadilan Negeri Sleman)**, Daerah Istimewa Yogyakarta.

End of Legal Document.

Organizing Committee of YMCC VII - Media Department.